

Chief Justice's Court

Case :- WRIT - C No. - 35179 of 2016

Petitioner :- Abhisek Sharma

Respondent :- State Of U.P. And 3 Othrs.

Counsel for Petitioner :- Bijai Prakash Tiwari

Counsel for Respondent :- C.S.C.,Suman Kumar Yadav

Hon'ble Dilip Babasaheb Bhosale,Chief Justice

Hon'ble Yashwant Varma,J.

Heard Shri Bijai Prakash Tiwari, learned counsel for the petitioner, Shri Suman Kumar Yadav, learned counsel for respondents 2 and 3.

The petitioner, in the instant writ petition, seeks direction to the respondents to provide new/fresh electricity connection to his house.

It appears, the petitioner has not complied with the requisite formalities for consideration of his application. Learned counsel for the petitioner seeks two weeks' time to enable the petitioner to complete the requisite formalities including furnishing of an indemnity bond, as required under the Electricity Supply Code, 2005. Further, he seeks a direction to the respondents to consider and pass appropriate orders on his application within time frame.

Counsel for the respondents submits that the respondents shall pass appropriate orders on the application of the petitioner within two weeks, once the petitioner complies with requisite formalities.

If the petitioner complies with the requisite formalities for seeking a new electricity connection within a period of two weeks from today, the respondents shall consider and decide his application within two weeks therefrom. If, for any reasons, the concerned authority of the respondents rejects his application, it shall pass a speaking order and communicate the same to the petitioner within one week therefrom.

Order Date :- 1.8.2016
AHA

(Dilip B Bhosale, CJ)

(Yashwant Varma, J)